

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 17-05

CMI DISTRIBUTION, INC.

COMPLAINANT,

v.

SERVICE BY AIR, INC., RADIANT CUSTOMS SERVICES INC. (FORMERLY KNOWN
AS SBA CONSOLIDATORS, INC.) and LAS FREIGHT SYSTEM LTD.

RESPONDENTS.

SUPPLEMENTAL BRIEFING IN FURTHER SUPPORT OF
MOTION TO DISMISS
OF RESPONDENTS SERVICE BY AIR, INC.
AND RADIANT CUSTOMS SERVICES INC.

TABLE OF CONTENTS

	<i>Page</i>
I. INTRODUCTION	1
II. DISCUSSION	1
A) Customs and Border Protection Form 3461	1
1. On what dates did Radiant certify the accuracy of each CBP 3461 form filed with their reply?	1
2. What connects a CBP 3461 form to a specific shipment?	2
B) SETTLEMENT	2
1. Have CMI's claims against Respondents been "settled" as stated in SBA's July 12, 2017 email?	2
2. If so, on what date did the parties settle?	2

I. INTRODUCTION

By its Order dated August 16, 2017, the Commission ordered the parties to respond to queries regarding the facts and circumstances of this claim. Respondents respond as follows:

II. DISCUSSION

A) Customs and Border Protection Form 3461

1. On what dates did Radiant certify the accuracy of each CBP 3461 form filed with their reply?

The CBP forms 3461 filed with Radiant's reply were internally-stored, electronic copies for which a software program automatically generated the date when they were accessed and printed for purposes of the reply briefing, each on July 17, 2017. Parenthetically, they also name "Radiant Customs Services, Inc." under "COMPANY NAME," which results from the software program having been adjusted since the forms originally were generated and filed. Other than the dates and Company Name," the data contained within the July 17, 2017 copies is identical to what was certified and filed with CBP.

Attached collectively as Exhibit 1 to the Declaration of Scott Stoppa ("the Stoppa Declaration") are copies of 48 of the actual, contemporaneously-generated CBP form 3461 documents filed for entries of the subject cargo. Radiant is unable to produce with this filing the remaining CBP form 3461 documents because they are stored offsite in a manner that precludes access before the briefing deadline. Stoppa Declaration. These documents show the actual dates when the data were certified, which range between June 19, 2014 and May 4, 2015.

Attached with the CBP forms 3461 are there supporting documentation, including Arrival Notice/Freight Bills issued by Chinese freight forwarders (analogous to U.S. NVOCCs); and SBA's ABI Processing Status Reports which show dates when each task for customs clearance was accomplished.

Attention is directed to Bates Stamp Nos. STOPPA0007, 10, 39, 43, 54, 61, 68, 80, 83, 99, 106, 119, 126, 132, 135, 138, 142, 146 and 156, which demonstrate ocean carriage for these entries terminated in Canadian ports. STOPPA00048 demonstrates a carriage by air. These 20 transports clearly are outside Commission jurisdiction under the Shipping Act. Remaining supporting documentation demonstrates that SBA did not issue a bill of lading for any of CMI's cargo at issue in this action.

2. What connects a CBP 3461 form to a specific shipment?

Each shipment may be identified with its corresponding CBP form 3461 by container numbers and the house and master bill of lading numbers stated within them as compared with the Chinese forwarder house bills attached to the Second Zasada Affidavit, and in documentation attached to the Stoppa Affidavit.

B) SETTLEMENT

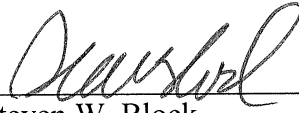
1. Have CMI's claims against Respondents been "settled" as stated in SBA's July 12, 2017 email?

No. Mr. Tincher, who is not an officer, director, manager or other speaking agent for SBA, issued this email in error. He intended to state that the matter is "pending settlement discussions." Unfortunately, settlement did not come to fruition.

2. If so, on what date did the parties settle?

Not applicable.

Respectfully submitted,

A handwritten signature in dark ink, appearing to read 'S. Block', is written over a horizontal line.

Steven W. Block
FOSTER PEPPER PLLC
1111 Third Avenue, Suite 3000
Seattle, WA 98101-3292
Telephone: (206) 447-4400
Facsimile: (206) 447-9700
E-Mail: steve.block@foster.com
Attorney for Respondents

August 30, 2017

CERTIFICATE OF SERVICE

The undersigned certifies under penalty of perjury under the laws of the State of Washington that I am now and at all times herein mentioned, a resident of the State of Washington, over the age of eighteen years, not a party to or interested in the above-entitled action, and competent to be a witness herein.

On the date given below, I caused to be delivered upon the designated party below in the manner indicated, true and correct copies of the following documents filed in the case:

1. Supplemental Briefing in Further Support of Motion to Dismiss of Respondents
Service by Air, Inc. and Radiant Customs Services Inc.;
3. Declaration of Scott Stoppa in Support of Motion to Dismiss of Respondents
Service by Air, Inc. and Radiant Custom Services Inc.

David Street
Brendan Collins
GKG Law, P.C.
The Foundry Building
1055 Thomas Jefferson Street NW
Suite 500
Washington, DC 20007
Attorneys for CMI Distribution, Inc.

- ☒ Via First Class U.S. Mail
- ☐ Via Priority Mail Express
- ☐ Via Express Mail
- ☐ Via Hand Delivery
- ☒ Via Electronic Mail
- ☐ Via E-Service Within Clerk's online eFiling Application

Phyllis Lang
LAS Freight System Ltd.
10th Fl, No. 44, Lane 11 Kuang Fu N. Rd.
Taipei, Taiwan
LSA Freight System Ltd.

- ☒ Via First Class U.S. Mail
- ☐ Via Priority Mail Express
- ☐ Via Express Mail
- ☐ Via Hand Delivery
- ☒ Via Electronic Mail
- ☐ Via E-Service Within Clerk's online eFiling Application

I declare under penalty of perjury under the laws of the state of Washington that the foregoing is true and correct.

Executed at Seattle, Washington, this 30th day of August, 2017.



Michelle Stark